

HOUSE No. 4668

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, November 5, 2025.

The committee on Mental Health, Substance Use and Recovery, to whom was referred the petition (accompanied by bill, House, No. 2208) of Brandy Fluker-Reid and others for legislation to establish a perinatal behavioral health care workforce trust fund, reports recommending that the accompanying bill (House, No. 4668) ought to pass.

For the committee,

MINDY DOMB.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to establish a perinatal behavioral health care workforce trust fund.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 6A of the General Laws is hereby amended by inserting after
2 section 16GG the following section:-

3 Section 16HH. (a) As used in this section, the following words shall, unless the context
4 clearly requires otherwise, have the following meanings:

5 “Eligible entity”, (i) A public or private institution of higher education or a non-profit or
6 community-based organization or health center serving perinatal individuals including, but not
7 limited to: (1) a recognized Indian tribe or tribal organization; (2) an organization serving
8 individuals from medically underserved populations and other underserved populations; or (3) a
9 public health agency, including a municipal public health department; or (ii) an individual who is
10 seeking to become or currently a member of the perinatal behavioral health care workforce.

11 “Medically underserved populations”, historically underserved populations or
12 populations within a geographic area with a lack of access to primary care, behavioral health or

perinatal healthcare providers or with a high infant mortality rate, high rates of poverty or high elderly population, as determined by the secretary.

“Perinatal”, the period of time from pregnancy up until one year following birth.

“Perinatal behavioral health care workforce”, health care providers in the field of mental or behavioral health, including substance use disorder services, who are acting in accordance with the laws of the commonwealth and who focus on perinatal health in perinatal individuals.

“Perinatal health outcomes”, health outcomes related to perinatal individuals.

“Perinatal individual”, an individual who: (i) is either pregnant or is within 12 months from the date of giving birth; (ii) is a biological parent or an adoptive or foster parent who is within 12 months from assuming custodial care of a child; or (iii) has lost a pregnancy due to a still birth, miscarriage or a medical termination within the previous 12 months.

“Secretary”, the secretary of health and human services.

(b) Subject to appropriation, the secretary shall establish a perinatal behavioral health care workforce trust fund to grow and diversify the perinatal behavioral health care workforce, hereinafter the trust fund.

(c) The secretary shall administer funds from the trust fund through grants to eligible entities to establish, expand or expand access to educational or training programs designed to grow and diversify the perinatal behavioral health care workforce.

(d) The secretary shall promulgate regulations or guidelines as necessary to develop and implement the grant application process and eligible uses of grant funds pursuant to this section; provided, however, that grant funds shall prioritize eligible entities serving medically

underserved populations or operating in areas with significant racial, ethnic or geographic disparities in perinatal health outcomes.

(e) The secretary shall make public an annual report that includes, but shall not be limited to:

(1) the number of applications received, grants awarded to eligible entities and the dollar amount of each grant in the preceding fiscal year;

(2) the nature of eligible entities receiving grant funds;

(3) the persons or organizations participating in educational or training programs provided by the eligible entities receiving grant funds; provided, that all information shall be stratified by demographics, including, but not limited to age, race, ethnicity, gender identity, language and zip code;

(4) the impact of eligible entities' use of grant funds on healthcare shortages;

(5) the impact of eligible entities' use of grant funds on the sustainability of the perinatal behavioral health care workforce; and

(6) the populations, communities and individuals served by such grants; provided, that all information shall be stratified by demographics, including, but not limited to, age, race, ethnicity, gender identity, language and zip code.

(f) The secretary shall provide, directly or by contract, technical assistance to eligible entities seeking a grant or receiving a grant under this section for the development, use, evaluation and post-grant period sustainability of the program proposed, established or expanded

54 through the grant. The secretary shall advertise or promote such technical assistance to eligible
55 entities to raise awareness about the grants and technical assistance.

56 (g) The secretary shall promulgate regulations as necessary to implement subsection (e)
57 and for the collection of quantitative and qualitative data, delineated by demographic
58 information, on the activities conducted and individuals served pursuant to such grants.